ABSTRACT RESEARCH GROUP, LLC.
TITLE SEARCH REQUEST

MAIN OFFICE / VA RECORDINGS
19309 WINMEADE DR. #229
LANSDOWNE, VA 20176

orders@abstractresearch.com
Phone 703-430-3695
Fax 703-430-3696

Order #: **77076** *Search Ordered:* **3/31/2026** *Search Due:* **4/1/2026**

PRODUCT: **30 YEAR FULL SEARCH + COPIES*****

COUNTY: **SCOTT COUNTY**

3/26/2026

NAME: **SELLER: Peter Kitching and Karoline Kitching; BUYER: Teresa Smith**

ADDRESS: **199 Culdesac Drive GATE CITY, VA 24251**

PARCEL ID:

LEGAL:

Please complete the order type as listed above in PRODUCT. Please return searches to searches@abstractresearch.com

******CURRENT OWNER SEARCH REQUIREMENTS ***: 24 MONTH DEED CHAIN REQUIRED***

1. *Copies of the following:*
   a. *All Deeds of conveyance including legal description.*
   b. *All Open Mortgages/Deed of Trusts (full copies unless otherwise noted)*
   c. *All Assignments/Modifications, if any.*
   d. *All Open Judgments/Liens/UCC's*
2. *All current tax information that attaches to the property with parcel number (tax id, folio #, etc.). Also, please make sure to include the tax bill or screen print out.*
3. *Effective date*
4. *Abstractor runsheets*

******30 YEAR SEARCH REQUIREMENTS ******

1. *Search must go back at least 30 years to a bona fide sales transaction.*
2. *Full copies of Deeds identified in #1.*
3. *Copies of open mortgages, deeds of trusts or encumbrances on the PROPERTY (ALL PAGES), all satellite documents with regard to identified encumbrances.*
4. *Recording Information for any CCR's, Easements, etc. pertaining to the subject property - 1st page.*
5. *Please provide Plat MAP*

Print Date: 12/15/2024

SCOTT COUNTY VA

Map#: 128A A 19 **Owner:** KRUG, BETTY
Acreage: .00 **911 Adr:** 199 CULDASAC DR
Record: 7307 **Card:** 1 **GIS Pin:**
Sale Price: 0 **Sale Date:** 0 / 0 / 0 **Ratio:** 0
Grantor:

Occupancy:	DWELLING	**Interior Walls:**	PANELED	**Stories:**	2.00
Right of Way:	PUBLIC			**Year Built:**	1925 **Age:** 97
Pavement:	GRAVEL	**Flooring:**	WOOD	**Public Gas:**	N **Electric:** Y
Terrain:	ON			**Foundation:**	CINDERBLOCK
Characteristic	ROLLING/SLOPING	**Total Rooms:**	8	**Exterior Walls:**	ASBESTOS
Water Source:	PUB-I	**Bed Rooms:**	3		
Sewer:	SEPTIC	**Bath Rooms:**	1 **F /** 0 **H**	**Roof Type:**	GABLE
Zoning:		**Heat Type:**	SPACE HEAT	**Roofing:**	COMP SHG
Use Class:	2 SINGLE FAMILY	**Fuel:**	WOOD/COAL	**Air Condition:**	N

Land Description	Unit Size	Unit Value	Methd	Unit Adj	Unit Total	Uty Value
HOMESITE	0.000	15,000	H	0	15,000	8,000

Improvement	Length	Width	Condition	Deprc.	Total Value
SHED-FRAME	0.0	0.0	A	0	100

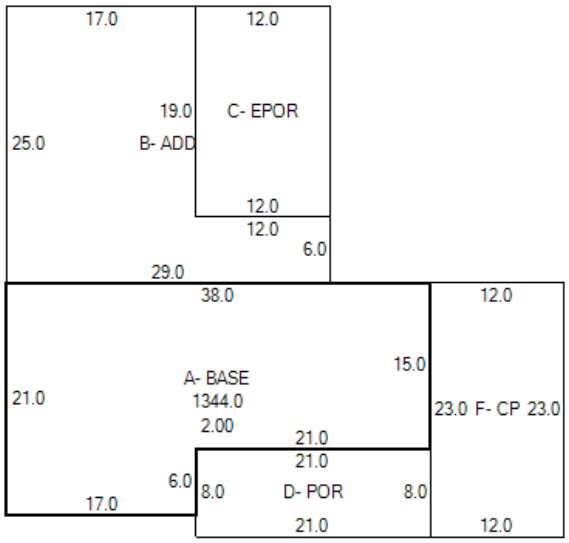
Description	Story	Size	Class	Factor	Rate	Value
A - BASE SECTION	2.00	1,344	D	0.00	0.00	0
B - ADDITION	1.00	497	D	0.00	0.00	0
C - ENCLOSED	1.00	228	D	0.00	45.00	10,260
D - PORCH	1.00	168	D	0.00	25.00	4,200
F - CARPORT	1.00	276	D	0.00	25.00	6,900

Structural Element

	% Area	Area SF		Rate SF		
Building		1,841	@	55.45	=	102,083
Basement		CR.SP.	@		=	0
Fin. Bsmt.	0.00	0	@	0.00	=	0

Bath Rooms: 1 **F /** 0 **H**	Plumbing Value:	-2,000
Heat Type:	Heating Value:	-2,761
Air Condition: N	A/C Value:	0
0 **FP,** 0 **Stack,** **NV**	Fireplace Value:	0
0 **Flue,** 0 **Stack,** 0 **Metal**	Flue Value:	0
	Built in Garage:	0
	Interior Improvements:	0
	Total S/W/Landscape:	0
	Extra Kitchen Value:	0
	Total Strucutre Addition:	21,360
	Sub Total:	118,682

Adj Factor:0.00	Adj. Fctor:	0.00	0
Class:D	Phys. Depr.	0.90	0
Condition:P	Func. Depr.	0.00	0
Year Built:1925	Econ. Depr.	0.00	0
Age:97	Fair Value		N/A



Instrument #
0 0
Deed Book
283 - 755
User Codes:

Date Inspected	% Chg	Previous Values	
4282021	-0.784	Bldg	47,400
At Home	1	Land	11,500
N		Total	58,900
Initials			
RC			

Value Summary

	Total Main Structure:		10,100
Date of Value 1 / 1 / 2022	**NbrHood Adj.**	0.00	0
	Perc Comp.	0.00	
	L/S Adj.	N/A	0
	Total Other		100

Total Imp.	10,200
Total Land	23,000
Total Prop.	33,200
Land Use Value	0

Remarks:

```
Date:  3/31/26     Cash Register:  001 COUNTY OF SCOTT                    14:08:52
Cshr:  JESSICA BISHOP            Account#:  000007307  Cust.Transactions:
Type:  PAY Dept/Bill#: RE2025  00011470001     P/I Date:   3/31/2026  3/31/2026
Name:  BELLMAN RONALD                          Bill Date:  8/29/2025 Half:    1
Nam2:                                          Due/PstDt: 11/20/2025
Addr:  727 DOGWOOD ST                  PAdr:  199 CULDASAC DR

       WEBER CITY VA
 Zip:  24290 - 0000                     Map#:  128A  A    19
Desc:  HILTON                                        NMXXXX
       1/2 OF LOT 24 & 25                Acre:       .00 Dist/Cls FU /     Status
                                      MrtgCo:
                                         SSN:  000 - 00 - 0000     000 - 00 - 000

         Land:       $23,000    Improve:      $10,200        Use:           $0
Original Bill:       $255.64    Credits:       $255.64  Discount:          $.00
 Penalty Paid:          $.00  Int Paid:          $.00  Last Date: 12/02/2025
  Amount Owed:          $.00     Other:          $.00  Setoff Claim#: 00000000
   Total Owed:          $.00   Penalty:          $.00  Interest:          $.00
        Principal Due:                 Pen Rate      % Int Fact
          Penalty Due:                 Interest Due:
     Total Amount Due:                 Aging:

F1=Amt Tender  F2=Next Ticket  F3=Exit            F10=Funct Menu   F20=Attach
```

This Instrument Prepared by:
Williams Title & Closing Services, LLC
229 E. New Street
Kingsport, TN 37660
(423) 230-0006

Scott County Virginia Circuit Court
Inst: LR2025000131
BK: LR 620 396-400
RECORDED: 01/28/2025 09:18 AM
MARK A. TAYLOR Clerk of Court
KRISTI

Consideraton: $40,000.00
Assessed Value: $30,850.00
Part of Tax Maps: 128A-A-18 & 128A-A-19

WARRANTY DEED

THIS DEED made and entered into this 21 day of January, 2025, by and between **RONALD BELLMAN**, hereinafter referred to as the Party of the First Part, and **PETER KITCHING and wife, KAROLINE KITCHING, as tenants by the entireties with the right of survivorship as at common law,** hereinafter referred to as the Parties of the Second Part;

W I T N E S S E T H:

That for and in consideration of the sum of Ten Dollars ($10.00) cash in hand paid, and other good and valuable consideration, the receipt of which is hereby acknowledged, the Party of the First Part has this day bargained and sold, and by these presents does hereby grant, transfer and convey unto the Parties of the Second Part, their heirs and assigns, with covenants of general warranty of title, all those certain lots or parcels of land situate, lying and being in Fulkerson Magisterial District of Scott County, Virginia, in the Town of Hiltons, on the north side of Southern Railway right of way, and being more particularly bounded and described as follows, to-wit:

TO FIND THE POINT OF BEGINNING, begin at an iron pin set in the southerly sideline of Hilton Road, being common corner for Lot 23 and part of Lot 24; thence along the divisional line of Lot 23 and part of Lot 24, S. 19° 38' 50" E, 100.24 to the point of BEGINNING, thence continuing along the divisional line of Lot 23 and part of Lot 24, S. 19° 38' 50" E., 157.33 feet to an iron pin set in the line of property now or formerly owned by Teresa Camper Gardner (Deed Book 599, Page 1036) and property herein described; thence along the divisional line of said Gardner and property herein described, N. 70° 16' 30" E., 132.00 feet to an iron pin set, corner to property now or formerly owned by Dale Kenneth McCoy and Mary Kathleen

McCoy (Deed Book 611, Page 2030) and property herein described; thence along the divisional line of said McCoy and property herein described N. 21° 17' 10" W., 145.08 feet to an iron pin set; thence a new line S. 75° 46' 30" W., 128.31 feet to the point of BEGINNING, containing 0.450 acres, more or less, as shown on survey dated June 15, 2024, entitled "Plat of survey for Ronald Bellman, showing division of Lot 24 and Lot 25", drawn by Reed Land Surveys, Carl G. Reed, Commonwealth of Virginia Land Surveyor Number 1482.

AND BEING part of the property conveyed to Ronald Bellman by Deed dated January 23, 2024, of record in Book 615, Page 1751 in the Circuit Clerk's Office for Scott County, Virginia.

TO HAVE AND TO HOLD unto the Parties of the Second Part, their heirs and assigns, in fee simple forever the above described property, together with all improvements thereon and appurtenances thereunto belonging, unto the Parties of the Second Part, their successors and assigns in fee simple forever.

The Party of the First Part covenants with the Parties of the Second Part, their heirs and assigns, that he is lawfully seized and possessed of the property; that he has a good and lawful right to convey the same as herein conveyed; and that he will forever warrant and defend the title to said property against the good and lawful claims of all persons whomsoever.

This conveyance is made expressly subject to all covenants, conditions, restrictions and reservations contained in former deeds and other instruments of record applicable to said property.

DESCRIPTION TAKEN FROM PRIOR CONVEYANCE, WITHOUT BENEFIT OF A SURVEY.

WITNESS the signature of the Party of the First Part herein on the day and year first above written.

RONALD BELLMAN

STATE OF TENNESSEE:
COUNTY OF SULLIVAN:

Personally appeared before me, a Notary Public in and for said State and County, the within-named bargainor(s), **RONALD BELLMAN**, with whom I am personally acquainted (or whose identity was proved to me on the basis of satisfactory evidence) to be the person who executed the foregoing instrument for the purposes therein contained.

Witness my hand and seal this 20th day of January, 2025.

Alice C Redwine
Notary Public

My commission expires: 5-21-28

ALICE C. REDWINE
STATE OF TENNESSEE NOTARY PUBLIC
SULLIVAN COUNTY

PROPERTY OWNER AND PROPERTY ADDRESS:

Peter Kitching and Karoline Kitching
199 Culdesac Drive
Hiltons, VA 24258

PERSON OR AGENCY RESPONSIBLE FOR TAXES:

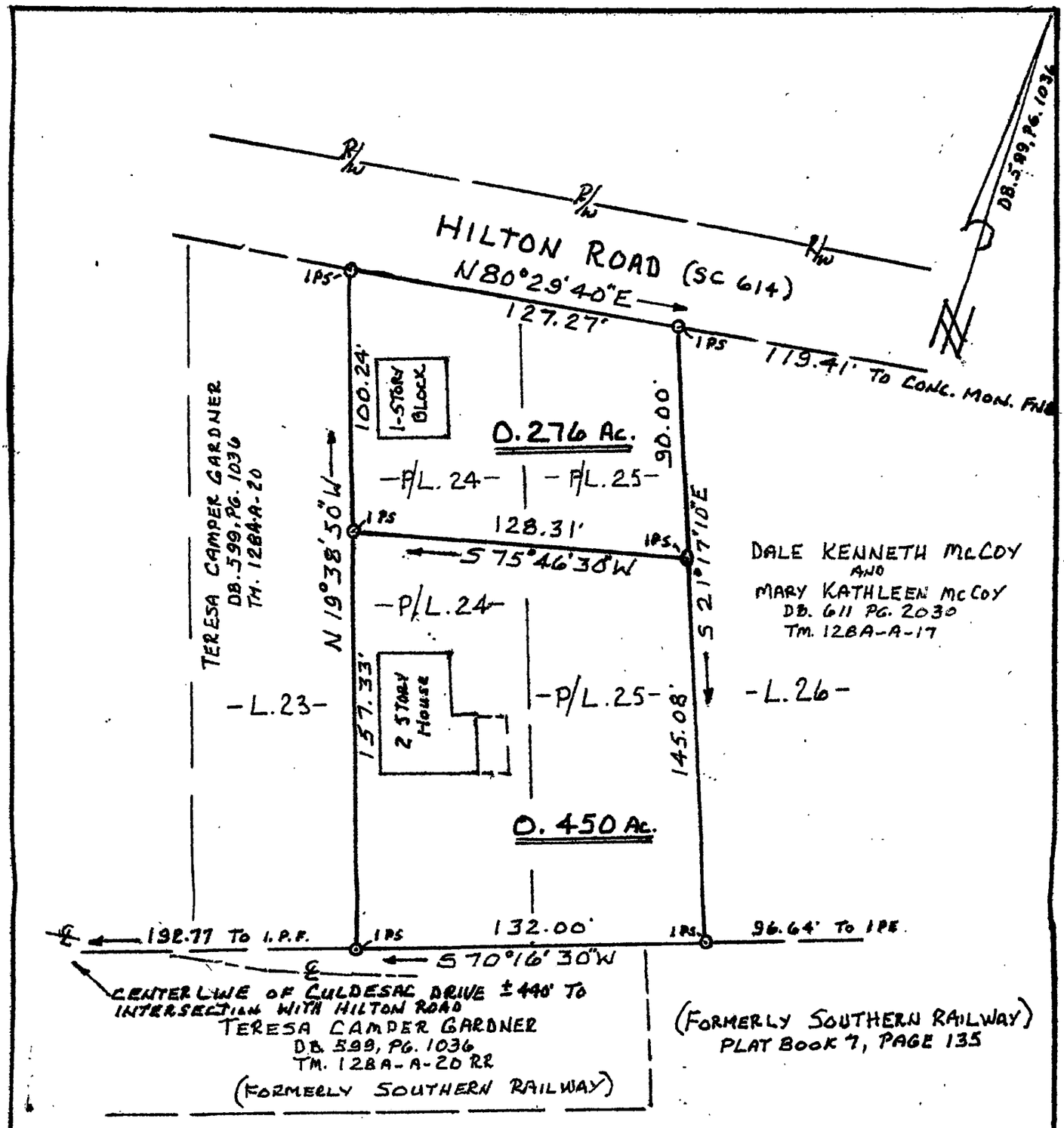
Peter Kitching and Karoline Kitching

415 Rodefer Hollow Rd.
Bloomtville TN 37617.

THE PREPARER OF THIS INSTRUMENT MAKES NO REPRESENTATION AS TO THE STATUS OF THE TITLE TO THE PROPERTY HEREIN DESCRIBED OR ANY MATTERS WHICH MAY BE DISCOVERED UPON COMPLETION OF A TITLE EXAMINATION; DESCRIPTION TAKEN FROM PRIOR CONVEYANCE, WITHOUT BENEFIT OF A SURVEY. THIS DEED HAS BEEN PREPARED SOLELY FROM THE INFORMATION FURNISHED TO THE PREPARER.

FAILURE TO PROPERLY RECORD THIS INSTRUMENT MAY JEOPARDIZE YOUR RIGHTS IN THIS PROPERTY.

INSTRUMENT 250000130
RECORDED IN THE CLERK'S OFFICE OF
SCOTT COUNTY CIRCUIT COURT ON
JANUARY 28, 2025 AT 09:21 AM
$40.00 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: $20.00 LOCAL: $20.00
MARK A. TAYLOR, CLERK
RECORDED BY: KLH



"I HEREBY CERTIFY THAT THIS BOUNDARY SURVEY, TO THE BEST OF MY KNOWLEDGE AND BELIEF, IS CORRECT AND COMPLIES WITH THE MINIMUM PROCEDURES AND STANDARDS ESTABLISHED BY THE VIRGINIA STATE BOARD OF ARCHITECTS, PROFESSIONAL ENGINEERS, LAND SURVEYORS AND CERTIFIED LANDSCAPE ARCHITECTS."

* THIS PLAT DEPICTS A CURRENT FIELD SURVEY *

* NOTE *

THE PREMISES SHOWN AND DESCRIBED HEREON ARE SUBJECT TO ANY EXISTING RIGHT OF WAYS, EASEMENTS, RESTRICTIONS, SETBACK LINES AND OUT CONVEYANCES, WHETHER THEY MAY BE SHOWN OR NOT OR WHETHER OR NOT RECORDED IN THE PUBLIC RECORDS.

COMMONWEALTH OF VIRGINIA
6.15.24
CARL G. REED
No. 1482
LAND SURVEYOR

LEGEND

- ● DENOTES MONUMENTS AS SHOWN
- IPS DENOTES IRON PIN SET
- IPF DENOTES IRON PIN FOUND
- CP DENOTES CALCULATED POINT
- R/W DENOTES RIGHT-OF-WAY

PLAT OF SURVEY
FOR
RONALD BELLMAN
SHOWING DIVISION OF
LOT 24 & LOT 25
TOWN OF HILTONS
DEED BOOK 615 PAGE 1751
TAX MAP No. 128A-A-18 & 19
FULKERSON MAGISTERIAL DIST.
SCOTT COUNTY VIRGINIA
JUNE 15, 2024 SCALE: 1" = 50'

REED LAND SURVEYS WEBER CITY, VA. 24290 (276)388-3199 FILE NO. 24-004

Scott County Virginia Circuit Court
Inst: LR2024000161
BK: LR 615 1751-1753
RECORDED: 01/31/2024 09:42 AM
MARK A. TAYLOR Clerk of Court
PFLANARY

Consideration: **$36,000.00**
Assessed Value: **$61,700.00**
Tax Map No: **128A-A-18 & 128A-A-19**

Document Prepared By:
The Law Office of Jesse Walker McMurray
Virginia State Bar Number **93666**
File No. **VA-23-582-H**

This Deed, made this 23rd day of January, 2024, by and between, **MICHELLE L. JONES AND MICHAEL P. O'NEILL**, the Party of the First Part, herein "Grantor", and **RONALD BELLMAN**, the Party of the Second Part, herein "Grantee".

- WITNESSETH -

That for and in consideration of the sum of THIRTY SIX THOUSAND AND 00/100 DOLLARS ($36,000.00), cash in hand paid, and other good and valuable consideration, receipt of which is hereby acknowledged, the Grantor does hereby grant, bargain, sell and convey, in fee simple, with GENERAL WARRANTY and English Covenants of title, unto the Grantee, **Ronald Bellman,** all the following described property, to-wit:

> All those certain lots or parcels of land situate, lying and being in Fulkerson Magisterial District of Scott County, Virginia, in the Town of Hiltons, on the north side of the Southern Railway right of way, and being more particularly bounded and described as follows, to-wit:
>
> BEGINNING at a stake, corner for Lots Nos. 23 and 24; thence running along the divisional line between Lots Nos. 23 and 24, N, 19-30 W. 86 feet to a stake; thence crossing Lots Nos. 24 and 25 with the line of Emory L. Wood, N. 71-15 E. 132 feet to a point in the line of Lot No. 26; thence along the divisional line between Lots Nos. 25 and 26, S. 19-30 E. 86 feet to a stake, corner of Lots Nos. 25 and 26; thence S. 71-15 W. 132 feet with the southerly boundary line of Lots Nos., 25 and 24 to the point of BEGINNING, and being the southern portion of Lots Nos. 24 and 25 of the Town of Hiltons, Virginia, and containing One-Fourth (1/4) of an acre, more or less.
>
> AND BEING the same property conveyed to Bettye McConnell O'Neill, A/K/A Bettye S. Krug, by deed from Edward J. O'Neill, dated September 25, 1973, of record in the Office of the Circuit Court Clerk of Scott County, Virginia, in Deed Book 3283, at Page 755.
>
> FOR REFERENCE the said Bettye S. Krug died testate on October 4, 2013, devising the herein described real estate to her children, namely: Michelle L. Jones and Michael P. O'Neill from Betty S. Krug by will dated September 27, 2013, and recorded in the Office of the Clerk of the Circuit Court, Scott County, Virginia in Will Book 75 at Page 1045, to which reference is hereby made.
>
> Tax Map Numbers: 128A-A-18 and 128A-A-19

There is included in this conveyance any and all easements, right of ways, roadways, water rights, pipeline rights, etc., that are an appurtenance to the property herein conveyed, together with any and all buildings, fixtures, and improvements.

The Law Office of Jesse Walker McMurray, P.C.

This conveyance is made expressly subject to the easements, conditions, restrictions, and rights-of-way of record contained in the instruments forming the chain of title to the property conveyed herein and to matters visible upon inspection.

The Part of the First Part covenants to be seized in fee simple of the property herein conveyed, to have the right to convey the said land to the Grantee and to have done no act to encumber the lands. Further, the Party of the First Part covenants that the Grantee shall have quiet possession of the land free from all encumbrances, except as mentioned herein, and to execute such further assurances of the lands as may be requisite.

Witness the following signatures and seals.

Michelle Jones (SEAL)
MICHELLE L. JONES

State of Va)
County of Scott) to wit:

I, Sandy Porter, a Notary Public of and for the City/County and State aforesaid, do hereby certify that **MICHELLE L. JONES** signed the foregoing writing and acknowledged the same before me in my City/County and State aforesaid.

Given under my hand this 23 day of Jan, 2024.

Given under my hand this 23 day of Jan, 2024.

Sandy Porter
Notary Public:
My commission expires 1-31-24

SANDY K. PORTER
NOTARY PUBLIC
REG # 334276
MY COMMISSION EXPIRES 1/31/2024
COMMONWEALTH OF VIRGINIA

The Law Office of Jesse Walker McMurray, P.C.

_____(SEAL)
MICHAEL P. O'NEILL

State of WV)
County of Hardy) to wit:

I, Vanessa Riggleman, a Notary Public of and for the City/County and State aforesaid, do hereby certify that **MICHAEL P. O'NEILL** signed the foregoing writing and acknowledged the same before me in my City/County and State aforesaid.

Given under my hand this 26 day of January, 20 24.

Notary Public:
My commission expires May 14 2026

OFFICIAL SEAL
NOTARY PUBLIC
STATE OF WEST VIRGINIA
VANESSA RIGGLEMAN
Summit Community Bank
90 South Grove Street
Petersburg, WV 26847
My Commission Expires May 14, 2026

PARTY RESPONSIBLE FOR PAYMENT OF PROPERTY TAXES:

RONALD BELLMAN
727 Dogwood St
Weber City Va 24290

INSTRUMENT 240000160
RECORDED IN THE CLERK'S OFFICE OF
SCOTT COUNTY CIRCUIT COURT ON
JANUARY 31, 2024 AT 09:45 AM
$62.00 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: $31.00 LOCAL: $31.00
MARK A. TAYLOR, CLERK
RECORDED BY: PRF

The Law Office of Jesse Walker McMurray, P.C.

Instrument # WF2014000092
Book W75 Page 1045
Filed: 03/19/2014 At 02:09 PM

LAST WILL AND TESTAMENT

OF

BETTYE S. KRUG

I, **BETTYE S. KRUG**, of Sullivan County, Tennessee, publish this as my last will and revoke each will and codicil I have previously made.

ARTICLE I
FIDUCIARIES

I appoint my daughter, **MICHELLE L. JONES**, and my son, **MICHAEL P. O'NEILL**, as Co-Executors of my Will. If either of my Co-Executors fails to qualify or ceases to serve, my remaining Co-Executor may serve alone.

ARTICLE 2
SPECIFIC GIFTS

I give each item of tangible personal property used by me in a strictly personal way, each item of household furniture and furnishings and each automobile to my children who survive me in approximately equal shares as they shall agree. However, if a child of mine predeceases me, but has descendants who survive me, I give said child's share to my deceased child's then-living descendants, per stirpes. Each question about whether an item is included under this paragraph or any disagreement regarding division is to be decided in my executor's sole discretion. If any beneficiary hereunder is a minor, my Executor may distribute such minor's share to such minor or for such minor's use to any person with whom such minor is residing or who has the care or control of such minor without further responsibility and the receipt of the person to whom it is distributed shall be a complete discharge of my Executor.

ARTICLE 3
DISTRIBUTION OF REMAINDER ESTATE

The rest of my estate is referred to as my "Remainder Estate". I give my Remainder Estate in equal shares to my children who survive me. If a child of mine does not survive me, but has descendants who survive me, the share such deceased child would have taken had he or she survived me, shall be apportioned into shares for such deceased

FILED 1/21, 2014 @ 8:09 a.m./p.m.
Katherine Priester, Clerk & Master
By: Katie Priester

Instrument # WF2014000092
Book W75 Page 1046
Filed: 03/19/2014 At 02:09 PM

child's descendants, per stirpes, and distributed to said beneficiaries subject to the remor beneficiary provisions of Paragraph 8.6.

ARTICLE 4
PROVISIONS RELATIVE TO FIDUCIARIES

4.1 Definition. The term "fiduciary" means the executor, trustee or guardian serving at any time under this instrument and includes successors.

4.2 Bond. No bond is required of any fiduciary appointed under this instrument or by any court.

4.3 Reports of Fiduciary. The fiduciary is not required to file an inventory, accountings or other reports to or settlements with any court. (However, upon request of my beneficiary, the fiduciary is to render annually, to each income beneficiary of the estate or trust, or to the natural or legal guardian of the beneficiary, full statements showing all items of income, receipts, expenses and disbursements and a schedule of all assets and liabilities of the estate or trust.)

4.4 Acts of Fiduciaries. Except as expressly set forth to the contrary in this instrument, any action taken by the fiduciaries is authorized by the concurrence of a majority of the fiduciaries then acting or, if only two are then acting, by the concurrence of both.

4.5 Appointment of Successor Fiduciary. If there is ever a time when none of the named fiduciaries is serving, a committee consisting of each of my then living children, acting by majority, may appoint individual or corporate fiduciaries or both.

4.6 Settlement of Accounts on Vacating Office. If a fiduciary ceases to serve, except where an individual fiduciary dies, the fiduciary is to file with each other fiduciary, including successors, a settlement of the accounts and an inventory of the estate or trust estate. The fiduciary is not required to make any report to or settlement with any court. The expense of the settlement and inventory is to be paid by the estate or trust estate. The fiduciary ceasing to serve is to deliver the estate or trust estate assets to the successor or remaining fiduciary.

4.7 Duties of Successor Fiduciary Regarding Predecessor Fiduciary. Any successor fiduciary appointed to serve under this instrument has no duty to audit or examine the records of its predecessor fiduciary and no duty to discover any irregularity relating to its predecessor's operation of the trust. No successor fiduciary is liable for any act or omission of a predecessor fiduciary.

4.8 Action by Beneficiaries. Any action to be taken herein by the beneficiaries is valid if taken by the beneficiaries of the estate or of the trust estate, as the case may be,

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who at any time represent a majority in interest in the estate or in the trust estate. Any beneficiary who is a minor or who is under other legal disability will be represented by his or her parent or his or her duly appointed guardian.

4.9 Nonresident Provision. The named fiduciary may appoint a fiduciary to meet any requirement that at least one fiduciary be a resident of the state of my domicile.

4.10 Powers of Fiduciaries. Pursuant to Tennessee Code Annotated § 35-50-109, each fiduciary serving under this instrument is authorized to exercise, together with all powers otherwise granted in this instrument, all powers set forth in Tennessee Code Annotated § 35-50-110, as may be amended from time to time.

ARTICLE 5
PAYMENT OF DEBTS, EXPENSES AND TAXES

5.1 Debts, Funeral and Administration Expenses. My executor is to pay all legally enforceable debts incurred by me, my funeral and burial expenses, the expenses of my last illness, and the administration expenses of my estate.

ARTICLE 6
DEFINITIONS

6.1 My Children. I have two children: **MICHELLE L. JONES**, and my son, **MICHAEL P. O'NEILL**.

6.2 Adopted Children. Every legally adopted child of any person designated or described in this instrument and every descendant, by blood or adoption, of the adopted child has the same status under this instrument as if the adopted child were the blood child of its adoptive parents with respect to rights to receive property and benefits while living and with respect to the passing of interests on the death of the adopted child or descendant; and the words "children" and "descendants" and words and phrases of similar import are to be so construed.

6.3 Singular and Masculine Usage. Any use of the masculine includes the feminine, and the singular the plural, when the meaning is appropriate.

6.4 Definition of Code. "Code" means the Internal Revenue Code of 1986 as amended. Each reference to a specific section must be read at the date the document was signed and includes each revision or renumbering of the section.

Instrument # WF2014000092
Book W75 Page 1048
Filed: 03/19/2014 At 02:09 PM

ARTICLE 7
SIMULTANEOUS DEATH

If any beneficiary under this will does not survive me for a period of thirty (30) days, I direct that I be deemed to have survived the beneficiary or beneficiaries and that the will be so construed.

ARTICLE 8
MISCELLANEOUS PROVISIONS

8.1 Dealing with Executor. No person dealing with the executor in any capacity is bound to inquire into the capacity to act on the part of the executor or into the authority for, or propriety of, any act of the executor or to see to the application or disposition of any money or other property paid, delivered or loaned to the executor.

8.2 Disposition of Assets. I authorize the executor, without the order of any court, to sell any of my real estate or personal property not specifically devised by my Will at public or private sale, without the joinder of any beneficiary, in the manner and on the terms and for the price as may seem best; and on each sale of real estate the proceeds are to be treated as forming part of my personal estate.

8.3 Waiver of Inventory Reports and Appraisal. I authorize my executor to administer and settle my estate without the necessity of filing an inventory or making any report or final settlement with any court to the extent permitted by law. I expressly waive appraisal of my estate if an appraisal is required by law.

8.4 Real Estate. Any real property which I own at my death is to be part of my probate estate and treated as forming part of my personal estate for administration purposes.

8.5 Joint Accounts. If any of my accounts are joint accounts with right of survivorship, it is my intention that these joint accounts pass to the surviving joint owner at my death.

8.6 Distributions to Beneficiaries under Age 25. If any share hereunder becomes distributable to a beneficiary who has not attained the age of twenty-five (25) years, then such share shall immediately vest in such beneficiary, but notwithstanding the provisions herein, my Executor acting as Trustee shall retain possession of such share in trust for such beneficiary until such beneficiary attains the age of twenty-five (25) years, using so much of the net income and principal of such share as my Executor deems necessary to provide for the proper support, medical care, and education of such beneficiary, taking into consideration to the extent my Executor deems advisable any other income or resources of such beneficiary or his or her parents known to my Executor. Any income not so paid or applied shall be accumulated and added to principal. Such beneficiary's share shall be

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paid over and distributed to such beneficiary upon attaining age Twenty-five (25), or if he or she shall sooner die, to his or her executors or administrators. Whenever my Executor determines it appropriate to pay any money for the benefit of a beneficiary for whom a trust is created hereunder, then such amounts shall be paid out by my Executor in such of the following ways as my Executor deems best: (1) directly to such beneficiary; (2) to the legal guardian of such beneficiary; (3) to some relative or friend for the care, support and education of such beneficiary; (4) by my Executor using such amounts directly for such beneficiary's care, support and education. My Executor as Trustee shall have with respect to each share or property so retained all the powers and discretions conferred upon him or her as Executor.

8.7 Trust Distribution. The administration of each trust created pursuant to Paragraph 8.6 above is to be carried out according to the direction in this instrument and as follows:

(a) Disability. The Trustee may make authorized distributions to or for the benefit of the beneficiary who is a minor or who is under other legal disability without the intervention of a guardian and is authorized to make distributions to or for the benefit of the beneficiary who is a minor to a custodian for any the minor. If the beneficiary's disability entitles the beneficiary to governmental assistance, the purpose of this trust is to provide for the extra and supplemental care, maintenance, support and education of the beneficiary in addition to the benefits the beneficiary otherwise receives as a result of the beneficiary's handicap or disability from each local, state or federal government or from each private agency which provides services or benefits to handicapped persons. This trust cannot be used to pay for or reimburse the cost of a beneficiary's care provided by governmental or private funds which care would be available without cost if the beneficiary had no assets.

In exercising the discretion given the Trustee to make distributions of income or principal to or for the benefit of the beneficiary, the Trustee shall distribute only so much of the income or principal as would not interfere with, prevent or reduce payment of other funds from governmental or other sources for the beneficiary. If the Trustee is authorized to make payments of income or principal to the parent of the beneficiary or any other person whose income or assets would be deemed to be income or assets of the beneficiary, the Trustee shall distribute only so much of the income or principal as would not interfere with, prevent or reduce payment of other funds from governmental or other sources for the beneficiary.

(b) Spendthrift Provision. The interest of the beneficiary to income or principal may not be transferred, assigned, pledged or mortgaged, whether voluntarily or involuntarily, before the Trustee actually distributes the income or principal to the beneficiary, and none is or may be made liable for any debt or obligation of the beneficiary, or subject to attachment of any other order, decree or process of court on account of or for the purpose of collecting any debt or obligation. This provision does not limit any power of appointment, disclaimer or assignment of income or principal to a trust created by or for

the benefit of the assigning beneficiary. The provisions of any statute of any jurisdiction which allow all or any part of a trust to be assigned, alienated or anticipated by the beneficiary, made liable for any debt or obligation of the beneficiary, or subject to attachment or other court process for the purpose of collecting any debt or obligation, except a statute allowing termination of a trust which is too small to be economically continued, do not apply to any trust created by this instrument. Except as specifically provided in this paragraph, it is intended for the entire principal or income or both of this trust to be subject to these spendthrift provisions notwithstanding any statutory provision which would allow some portion of the trust to be subjected to the assignment, alienation, anticipation or the claims of creditors.

(c) Power to Terminate. If at any time the principal of any trust is too small to justify the continuance of the trust for economic reasons, the Trustee may terminate the trust and distribute the principal and any undistributed income to the person to whom the trust was apportioned to, in the case of a trust with multiple beneficiaries, in equal shares among the original beneficiaries then living and the descendants, per stirpes, of any original beneficiary who is deceased.

IN WITNESS WHEREOF, I, **BETTYE S. KRUG**, have expressly requested and directed **MICHAEL P. O'NEILL** to sign my name in this Will as and for my signature, in my presence.

Bettye S. Krug
BETTYE S. KRUG

By: _____
MICHAEL P. O'NEILL
(done in the presence of Betty S. Krug at her express request and consent)

I, **MICHAEL P. O'NEILL**, hereby declare that **BETTYE S. KRUG**, expressly requested that I sign her name as and for her signature to this Will and that I, in her presence and by her express direction, signed her name as and for such signature.

_____

The foregoing instrument was signed by **MICHAEL P. O'NEILL** with the name of **BETTYE S. KRUG** as the Last Will and Testament of **BETTYE S. KRUG** in the presence of each of us and in the presence and at the express direction of the said Testator, **BETTYE S. KRUG**, and was sealed, published and delivered by the said Testator as her Last Will and Testament in our presence, and we, at her request, in her presence and in the presence of each other, have hereunto subscribed our names as witnesses this 27th day of September, 2013.

Signatures of Witnesses	Addresses
	Po Box 88
	Kingsport TN 37662
Mary P. Bailey	P.O. BOX 88
	Kingsport TN 37662

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Instrument # WF2014000092
Book W75 Page 1052
Filed: 03/19/2014 At 02:09 PM

AFFIDAVIT

STATE OF TENNESSEE
COUNTY OF SULLIVAN

We, the undersigned attesting witnesses, after being duly sworn, make oath or affirm that the foregoing Last Will and Testament was signed by **MICHAEL P. O'NEILL** on behalf of and at the express direction of **BETTYE S. KRUG,** as and for and at the time acknowledged, published and declared by her to be her Last Will and Testament, in the sight and presence of us, and in the sight and presence of each other, and at her request we have subscribed our names as attesting witnesses on the 27th day of September, 2013, and have executed this Affidavit; and we further make oath or affirm that the Testator was of sound mind and disposing memory and not acting under the fraud, menace or undue influence of any person, was more than eighteen (18) years of age; and that each of the attesting witnesses is more than eighteen (18) years of age.

WITNESS

WITNESS

SWORN or affirmed and subscribed to before me, this the 27th day of September, 2013.

NOTARY PUBLIC

NORMA K. COBB
STATE OF TENNESSEE NOTARY PUBLIC
COUNTY OF SULLIVAN

My commission expires: 06/21/2017

THIS INSTRUMENT PREPARED BY
JOEL A. CONKIN
WILSON WORLEY MOORE GAMBLE & STOUT PC
2021 MEADOWVIEW LANE, 2ND FLOOR
EASTMAN CREDIT UNION BUILDING
P.O. BOX 88
KINGSPORT, TN 37662

Instrument # WF2014000092
Book W75 Page 1053
Filed: 03/19/2014 At 02:09 PM

**IN THE CHANCERY COURT, PROBATE DIVISION,
FOR SULLIVAN COUNTY AT BLOUNTVILLE, TENNESSEE**

IN RE:	**PROBATE OF LAST WILL AND TESTAMENT OF**	:
	BETTYE SUE KRUG, Deceased.	:

Case No. P14 19354

FILED 1/21, 2014 @ 8:35 a.m./p.m.
Katherine Priester, Clerk & Master
By: Nancy J. Mowery

ORDER

This cause came to be heard on this the 21st day of January, 2014, before the Probate Court of Sullivan County, upon the complaint and a paper writing purporting to be the Last Will and Testament of Bettye Sue Krug, deceased. The said paper writing bearing the date of September 27, 1992 and having the name of Bettye S. Krug signed thereto and being subscribed by Joel A. Conkin and Mary P. Barkley as subscribing witnesses. And thereupon Michael P. O'Neill and Michelle L. Jones move that the Court admit the said paper writing to probate and to be recorded as the Last Will and Testament of the said Bettye Sue Krug, deceased. It further appearing to the Court from the Affidavits of Joel A. Conkin and Mary P. Barkley that the said paper writing was executed during the lifetime of the Testator and was signed by Michael P. O'Neill for her in their presence and they each signed the said paper writing in the Testator's presence and in the presence of each other and at her request, on the day and date it bears as and for her Last Will and Testament. At the time of making said instrument they verily believed the decedent to be competent to make a Last Will and Testament.

It further appearing to the Court that the said Bettye Sue Krug deceased, died on October 4, 2013, testate, in Sullivan County, Tennessee and that her usual place of residence at the time of death was in Sullivan County. This probate is being opened in Common Form.

IT IS, THEREFORE, ORDERED that the said instrument is the true, whole and Last Will and Testament of the deceased and the same is admitted to probate and recorded in Will Book 140 at page 305, on this the 21ST day of January, 2014.

IT IS FURTHER ORDERED that, upon posting of bond in the amount of $25,000.00, the Letters Testamentary be issued to Michael P. O'Neill and Michelle L. Jones as provided in the Will, and that the requirement to file accountings or an inventory be waived.

ENTER:

Kathi Priestas
CLERK AND MASTER

APPROVED FOR ENTRY:

JOEL A. CONKIN (BPR #016637)
Attorney for Petitioners
WILSON WORLEY PC
2021 Meadowview Lane, Second Floor
P.O. Box 88
Kingsport, TN 37662
(423) 723-0400

Instrument # WF2014000092
Book W75 Page 1055
Filed: 03/19/2014 At 02:09 PM

IN THE CHANCERY COURT, PROBATE DIVISION,
FOR SULLIVAN COUNTY AT BLOUNTVILLE, TENNESSEE

IN RE:	**PROBATE OF LAST WILL AND TESTAMENT OF**	:
		: **Case No.** P1419354
	BETTYE SUE KRUG, Deceased.	:

FILED 1/21, 2014 @ 8:09 a.m./p.m.
Katherine Priester, Clerk & Master
By: Kati Priester

COMPLAINT

Your Complainant would respectfully show to the Court:

1. That Michael D. O'Neill is a resident of Moorefield, West Virginia, and Michelle L. Jones is a resident of Scott County, Virginia, and both are interested parties in said estate and file the complaint as Co-Executors of said deceased.

2. That said deceased died in Sullivan County, Tennessee on the 4th day of October, 2013, a resident of Sullivan County, Tennessee, at the age of 79 years, leaving a Last Will and Testament bearing date of September 27, 2013, wherein Joel A. Conkin and Mary P. Barkley are the subscribing witnesses. Said Last Will and Testament directs that the Co-Executors be excused from bond, and from filing an inventory or accounting.

3. That said deceased left an estate to be administered and that the estimated value of the personalty is $15,000.00 and the realty is $106,600.00.

4. That the names, relationships, and residence of legatees and devisees of said deceased are as follows:

Michael P. O'Neill
614 North Main Street
Moorefield, WV 26836

Michelle L. Jones
971 Alley Valley Road
Gate City, VA 24251

5. The complainants are not aware of any instrument revoking the Last Will and Testament being offered for probate, and the complainants believe that the document being offered for probate is the decedent's Last Will.

PREMISES CONSIDERED, COMPLAINANT PRAYS:

1. That said Last Will and Testament of Testator, Bettye Sue Krug, deceased, be admitted to probate.

2. That Letters Testamentary be issued to Michael P. O'Neill and Michelle L. Jones and that the filing of an inventory or accounting be waived as provided in the Will.

MICHAEL P. O'NEILL
Complainant

MICHELLE L. JONES
Complainant

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JOEL A. CONKIN (BPR #016637)
Attorney for Complainants
WILSON WORLEY PC
2021 Meadowview Lane, Second Floor
P.O. Box 88
Kingsport, TN 37662
(423) 723-0400

STATE OF WEST VIRGINIA

COUNTY OF Hardy

Michael P. O'Neill, Complainant, makes oath that the statements contained in the foregoing complaint are true to the best of his knowledge, information and belief.

MICHAEL P. O'NEILL

Sworn to and subscribed before me, 9th, this ____ day of January 2014.

Sharon Wratchford
Notary Public or Probate Clerk

My commission expires: 4-11-2021

OFFICIAL SEAL
Notary Public, State of West Virginia
SHARON WRATCHFORD
Baker Insurance Services
109 Washington St.
Moorefield, WV 26836
My commission expires April 11, 2021

Instrument # WF2014000092
Book W75 Page 1058
Filed: 03/19/2014 At 02:09 PM

STATE OF TENNESSEE

COUNTY OF SULLIVAN

Michelle L. Jones, Complainant, makes oath that the statements contained in the foregoing complaint are true to the best of her knowledge, information and belief.

Michelle L. Jones
MICHELLE L. JONES

Sworn to and subscribed before me, Mary P. Barkley, this 15th day of January, 2014.

Mary P. Barkley
Notary Public or Probate Clerk

My commission expires: 11/19/2014

MARY P. BARKLEY
STATE OF TENNESSEE NOTARY PUBLIC
SULLIVAN COUNTY

Instrument # WF2014000092
Book W75 Page 1059
Filed: 03/19/2014 At 02:09 PM

**IN THE CHANCERY COURT, PROBATE DIVISION,
FOR SULLIVAN COUNTY AT BLOUNTVILLE, TENNESSEE**

LETTER TESTAMENTARY P1419354

It appearing to the undersigned that Bettye Sue Krug has died, a resident of Sullivan County, leaving a will which has been proved and probated in this Court, and in which

Michael P. O'Neill 614 North Main Street Moorefield, WV 26836	Michelle L. Jones 971 Alley Valley Road Gate City, VA 24251

have been appointed as Co-Executors and you both, having qualified (and bond having been posted) and the undersigned, having been satisfied as to your claim and ability to administer the estate,

YOU ARE, THEREFORE, empowered to take into your possession and control, all the personal property of said estate and return a true and perfect inventory thereof, as required by law, to pay all proven debts, and to do and transact all the duties required of personal representatives; and after having settled said estate, to deliver the residue thereof to those who are entitled to it.

Issued at office this 21st day of January, 2014.

CLERK AND MASTER

Kati Priester

STATE OF TENNESSEE
COUNTY OF SULLIVAN

The undersigned does hereby certify that the foregoing is a true copy of Letter Testamentary, issued to Michael P. O'Neill and Michelle L. Jones, as Co-Executors of Estate of Bettye Sue Krug, deceased, as the same appears in the records in this office and is now in full force and effect.

This _____ day of _____, 2014.

CLERK AND MASTER

_____

Instrument # WF2014000092
Book W75 Page 1060
Filed: 03/19/2014 At 02:09 PM

STATE OF WEST VIRGINIA

COUNTY OF HARDY

I do solemnly swear that I will honestly and faithfully discharge the duties of Personal Representative of this estate and perform the Will, according to law, to the best of my knowledge and ability.

MICHAEL P. O'NEILL

Sworn to and subscribed before me this 9th day of January, 2014.

Sharon Wratchford
Notary Public

My Commission Expires: 4-11-2021

OFFICIAL SEAL
Notary Public, State of West Virginia
SHARON WRATCHFORD
Baker Insurance Services
109 Washington St.
Moorefield, WV 26836
My commission expires April 11, 2021

STATE OF TENNESSEE

COUNTY OF SULLIVAN

I do solemnly swear that I will honestly and faithfully discharge the duties of Personal Representative of this estate and perform the Will, according to law, to the best of my knowledge and ability.

MICHELLE L. JONES

Sworn to and subscribed before me this 15th day of January, 2014.

Mary P. Barkley
Notary Public

My Commission Expires: 11/19/2014

MARY P. BARKLEY
STATE OF TENNESSEE NOTARY PUBLIC
SULLIVAN COUNTY

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CLERK'S AND JUDGE'S CERTIFICATE

Instrument # WF2014000092
Book W75 Page 1061
Filed: 03/19/2014 At 02:09 PM

State of Tennessee, Sullivan County

I, Katherine Priester, Clerk of the Chancery Court for the County of Sullivan, in the State aforesaid, do Certify that the foregoing is a full, true and perfect copy of The Last Will and Testament of

Bettye S. Krug

and Order as appears of record now on file in my office, in Will Book 140 Page 305, Complaint and Letter Testamentary

Witness my hand and seal, at office in Blountville, this the 21st day of January, 2014.

Katherine Priester
Clerk and Master

STATE OF TENNESSEE, SULLIVAN COUNTY

I, E. G. Moody, Chancellor of Sullivan County, Tennessee, do certify that Katherine Priester, whose genuine signature is subscribed to the foregoing certificate, which is in due form and which is executed by the proper office, is now and was at the time of signing same, Clerk and Master of Sullivan County, Tennessee, duly appointed, qualified and acting, and that all of her official acts, as such, are entitled to full faith and credit.

Witness my hand at office, in Bristol, Tennessee, this the 21st day of January, 2014.

E. G. Moody, Chancellor

STATE OF TENNESSEE, SULLIVAN COUNTY

I, Katherine Priester, Clerk and Master of Sullivan County, Tennessee do certify that E. G. Moody, whose genuine signature is subscribed to the foregoing certificate which is in due form and which is executed by the proper officer, is now and was at the time of signing same, Chancellor of Sullivan County, Tennessee, duly elected, commissioned, qualified and acting, and that all of his official acts, as such, are entitled to full faith and credit.

Witness my hand and seal at office in Blountville, this the 21st day of January, 2014.

Katherine Priester
Clerk and Master

Instrument # WF2014000092
Book W75 Page 1062
Filed: 03/19/2014 At 02:09 PM

VIRGINIA:

In the Clerk's Office of the Circuit Court of Scott County, on this the 19TH day of March, 2014.

RE: BETTYE S. KRUG, Deceased

An authenticated copy of the Last Will and Testament dated the 27th day of September, 2013, of BETTYE S. KRUG, of Sullivan County, State of Tennessee, who died on October 4, 2013, and who owned real estate in the County of Scott, Commonwealth of Virginia, within the jurisdiction of this court, together with the certificates thereto annexed showing the recordation thereof in the Chancery Court, Probate Division, for Sullivan County at Blountville, Tennesssee, by the Clerk and Master, being Estate Number P1419354, by acts of congress exemplifying these documents, on the 21st day of January, 2014, was this day presented to the Clerk of this Court and offered for probate.

And it appearing from inspection thereof that the Will proved in the Chancery Court, Probate Division, for Sullivan County at Blountville, Tennessee, by the Clerk and Master, and filed and proven on January 21, 2014, Case Number P1419354, in Will Book 140 Page 305, to have been so executed as to be a valid Will in this Commonwealth and County by the aforesaid copies be it is now admitted to probate as a Will of real estate in this County, and the Will, together with the certificates annexed, be recorded a such.

Teste: Cathy Baker, Deputy Clerk

PIN: Number: 7306 & 7307

This DEED, made and entered into this the 25th day of September, 1973, by and between EDWARD J. O'NEILL, party of the first part, and BETTYE McCONNELL O'NEILL, party of the second part.

W I T N E S S E T H:

That for and in consideration of the sum of ONE ($1.00) DOLLAR, this day cash in hand paid by the party of the second part, to the party of the first part, at and before the sealing and delivery of this deed, the receipt whereof is hereby acknowledged, the said party of the first part does hereby grant, bargain, sell and convey unto the said party of the second part, with covenants of general warranty, all his undivided right, title, and interest, in those certain lots or pareels of real estate situate, lying and being in Fulkerson Magisterial District of Scott County, Virginia, in the Town of Hiltons, on the north side of the Southern Railway right of way, and being more particularly bounded and described as follows:

BEGINNING at a stake, corner for Lots Nos. 23 and 24; thence running along the divisional line between Lots Nos. 23 and 24, N. 19-30 W. 86 feet to a stake; thence crossing Lots Nos. 24 and 25 with the line of Emory L. Wood, N. 71-15 E. 132 feet to a point in the line of Lot No. 26; thence along the divisional line between Lots Nos. 25 and 26, S. 19-30 E. 86 feet to a stake, corner of Lots Nos. 25 and 26; thence S. 71-15 W. 132 feet with the southerly boundary line of Lots Nos. 25 and 24 to the point of BEGINNING, and being the southern portion of Lots Nos. 24 and 25 of the Town of Hiltons, Virginia, and containing One-Fourth (1/4) of an acre, be the same, more or less, and being the same

ALBERT M. SHELTON
ATTORNEY
GATE CITY, VA.

property conveyed to Edward J. O'Neill and Bettye M. O'Neill, his wife, by deed dated February 28, 1967, from June Lane Wood, widow, and of record in the Clerk's Office of Scott County, Virginia, in Deed Book 237 Page 472, to which reference is hereby made.

TO HAVE AND TO HOLD unto the said party of the second part, her heirs and assigns forever, in fee simple, together with all appurtenances thereunto belonging and pertaining.

WITNESS the following signature and seals:

Edward J. O'Neill (SEAL)
EDWARD JOHN O'NEILL

STATE OF VIRGINIA,
COUNTY OF SCOTT, to-wit:

I, Shirley E. Blalock, a Notary Public, of and for the County aforesaid, in the State of Virginia, do hereby certify that EDWARD JOHN O'NEILL, whose name is signed to the foregoing writing, bearing date on the 25th day of September, 1973, has acknowledged the same before me in my County and State aforesaid.

Given under my hand and seal this the 28th day of September, 1973.

Shirley E. Blalock
NOTARY PUBLIC

My commission expires:
May 18, 1977.

Virginia: County of Scott, to-wit:
In the Clerk's Office of the Circuit Court of the County and State aforesaid, the 28 day of Dec. 1974 at 11:45 o'clock A M., the foregoing writing was presented and admitted to record, and together with the certificate of acknowledgement recorded. "Taxes imposed by S 58-54.1 of the code have been paid. $_____"

Teste: Harry B. Penley, Clerk

ALBERT M. SHELTON
ATTORNEY
GATE CITY, VA.

THIS DEED, made and entered into this the 28th. day of February, 1967, by and between JUNE LANE WOOD, widow, party of the first part, and EDWARD J. O'NEILL and BETTYE M. O'NEILL, his wife, as tenants by the entireties with the right of survivorship as at common law, parties of the second part.

W I T N E S S E T H:

That for and in consideration of the sum of SEVEN THOUSAND ($7000.00) DOLLARS, cash in hand paid by the parties of the second part, to the parties of the first part, at and before the sealing and delivery of this deed, the receipt whereof is hereby acknowledged, the said parties of the first part do hereby grant, bargain, sell and convey unto the said parties of the second part, as tenants by the entireties with the right of survivorship as at common law, with covenants of general warranty, those certain lots or parcels of real estate situate, lying and being in Fulkerson Magisterial District of Scott County, Virginia, in the Town of Hiltons, on the North side of the Southern Railway right of way, and being more particularly bounded and described as follows:

BEGINNING at a stake, corner for Lots Nos. 23 and 24; thence running along the divisional line between Lots Nos. 23 and 24, N. 19-30 W. 86 feet to a stake; thence crossing Lots Nos. 24 and 25 with the line of Emory L. Wood, N. 71-15 E. 132 feet to a point in the line of Lot No. 26; thence along the divisional line between Lots Nos. 25 and 26, S. 19-30 E. 86 feet to a stake, corner of Lots Nos. 25 and 26; thence S. 71-15 W. 132 feet with the southerly boundary

LAW OFFICES
COLEMAN & COLEMAN
GATE CITY, VA.

line of Lots Nos. 25 and 24 to the point of BEGINNING, and being the southern portion of Lots Nos. 24 and 25 of the Town of Hiltons, Virginia, and containing One-Fourth (1/4) of an acre, be the same, more or less, and being the same real estate conveyed to Luther C. Wood and June Lane Wood, his wife, by deed from Gertrude Wood, widow, et al, dated October 2, 1958, and of record in the Clerk's Office of Scott County, Virginia, in Deed Book No. 185, at page 152; the said Luther C. Wood having devised his one-half (1/2) interest in said real estate to June Lane Wood, his wife, by will dated December 28, 1962, and of record in the Clerk's Office of Scott County, Virginia, in Will Book No. 30, at page 598, to which reference is hereby made.

The aforesaid grantor covenants that she has the right to convey the said land to the aforesaid grantees; that the said grantees shall have quiet possession of said land, free from all encumbrances; that she has done no act to encumber the said land; and that she will execute such further assurances of title as may be requisite.

TO HAVE AND TO HOLD unto the said parties of the second part, as tenants by the entireties with the right of survivorship as at common law, forever, in fee simple, together with all appurtenances thereunto belonging and pertaining.

WITNESS the following signature and seal:

June Lane Wood (SEAL)

LAW OFFICES
COLEMAN & COLEMAN
GATE CITY, VA.

STATE OF VIRGINIA,

COUNTY OF SCOTT, to-wit:

I, MARGIE KERNS, a Notary Public, ~~of~~ and for the County aforesaid, in the State of Virginia, do hereby certify that JUNE LANE WOOD, whose name is signed to the foregoing writing, bearing date on the 28th. day of February, 1967, has acknowledged the same before me in my County and State aforesaid.

Given under my hand this the 28th day of February 1967.

My commission expires: August 17, 1968

Margie Kerns
NOTARY PUBLIC

VIRGINIA, SCOTT COUNTY, TO WIT:
In the Clerk's Office of said county the 28 day Feb. 1967, the foregoing writing was presented and with certificate annexed, admitted to record and duly indexed at 11:25 A M.
Teste: C. N. Craft Jr. Clerk

LAW OFFICES
COLEMAN & COLEMAN
GATE CITY, VA.

I, LUTHER C. WOOD, of Hilton, Scott County, Virginia, being of sound and disposing mind and memory, do hereby make, publish and declare this to be my last will and testament, hereby revoking all wills by me at any time heretofore made.

FIRST: I direct all my just debts to be paid.

SECOND: I give and bequeath all of my personal estate to my beloved wife, June L. Wood.

THIRD: I give full power and authority in my hereinafter named Executrix to sell and convey at a reasonable time after my death the nine (9) acre tract of land on which I have a dwelling house and located East of Hiltons, Virginia, and the proceeds therefrom to be divided equally among my four (4) children, namely: Wanda Jean Kendrick, Loretta Frazier, Patricia McCrary and Linda Wood.

FOURTH: I give and devise the dwelling house and lot in which I live located in Hiltons, Virginia to my beloved wife, June L. Wood, in fee simple and absolutely.

FIFTH: I give, devise and bequeath all the rest and residue of my estate, real, personal and mixed and every kind and character and wheresoever situated to my beloved wife, June L. Wood, to be hers absolutely and in fee simple.

SIXTH: I hereby nominate, constitute and appoint my said wife, June L. Wood, as Executrix of this my last will and testament; and I direct that no security be required of her as such Executrix.

LAW OFFICES
COLEMAN & COLEMAN
GATE CITY, VA.

Given under my hand and seal this 28th. day of December, 1962.

Luther C. Wood (SEAL)

The above signature of the testator was made, and the foregoing will was acknowledged to be his last will and testament by the said testator, in the presence of us, two competent witnesses, present at the same time; and we, the said witnesses, do hereunto subscribe the said will on the date last above written, in the presence of the said testator and of each other, at the request of the said testator, who was then of sound mind and over the age of twenty-one years.

S. W. Coleman, Jr.

Margie Kerns

Virginia:

In the Office of the Circuit Court Clerk of Scott County, the 11th day of March, 1963.

This day a paper writing purporting to be the last Will and Testament of Luther C. Wood, deceased, was produced in said Clerk's Office and proved by the oath of S. W. Coleman, Jr., one of the subscribing witnesses thereto and the same is admitted to probate and ordered to be recorded as and for the true last Will and Testament of Luther C. Wood, deceased.

Teste: Jessie Darnell
Deputy Clerk.

THIS DEED, made and entered into this the 2nd day of October, 1958, by and between GERTRUDE WOOD, widow, STEWART P. WOOD and MAE WOOD, his wife, EMORY LEE WOOD and VIVIAN WOOD, his wife, FRED O. WOOD and PAULINE WOOD, his wife, SCOTT WOOD and CLARA FAYE WOOD, his wife, parties of the first part, and LUTHER C. WOOD and JUNE LANE WOOD, his wife, parties of the second part.

W-I-T-N-E-S-S-E-T-H:

That for and in consideration of the sum of ONE DOLLARS ($1.00) cash in hand paid by the parties of the second part to the parties of the first part at and before the sealing and delivery of this deed, the receipt whereof is hereby acknowledged and other good and valuable consideration, the parties of the first part do hereby grant, bargain, sell and convey unto the parties of the second part, with covenants of general warranty, all of their undivided right, title and interest in and to that certain tract or parcel of land situate in Fulkerson Magisterial District of Scott County, Virginia, in the Town of Hiltons, and being the same tract or parcel of land conveyed to L. B. Wood and Gertrude Wood by W. S. Light and Lawson Light, his wife, by deed dated August 7, 1945, and of record in the Clerk's Office of Scott County, Virginia, in Deed Book 124, at page 300, said tract of land being more particularly described as follows:

BEGINNING at a stake, corner of theGeorge B. Bevins Lot No. 26, now owned by J. E. Owen, thence South 71 1/4 W 132 feet to a stake, corner to Polly Darnell lot; thence North 19 1/2 W 166 feet to a stake at edge of County Road; thence

LAW OFFICES
COLEMAN & COLEMAN
GATE CITY, VIRGINIA

North 71 1/4 E 132 feet to a stake, corner of J. E. Owen, Jr. lot, or Lot No. 26; thence South 19 1/2 E 166 feet to the Beginning, containing Lots Nos. Twenty-Four (24) and Twenty-Five (25) of an old plat of record in the Clerk's Office of Scott County, Virginia in Deed Book 83, at page 197, together with all appurtenances and water rights thereunto belonging.

There is excepted from this conveyance that certain lot or parcel of land which was conveyed by Gertrude Wood, et als, to Emory L. Wood and Vivian Wood by deed dated March 19, 1951, and or record in the Clerk's Office of Scott County, Virginia, in Deed Book 151, at page 309, which lot is more particularly bounded and described as follows:

BEGINNING at a stake, corner of Lot No. 23 and 24, thence N 71 1/4 E 132 feet to a stake, corner of J. E. Owens, Jr., Lot No. 26; thence S 19 1/2 E with the boundary line of Lot Nos. 25 and 26, 80 feet to a stake in said boundary line; thence S 71 1/4 W 132 feet to a stake in the boundary line of Lots Nos. 23 and 24; thence with the boundary line of Lot Nos. 23 and 24, N 19 1/2 W 80 feet to the Beginning.

The aforesaid grantors covenant with the aforesaid grantees that they have the lawful right to convey the aforesaid real estate; that the said grantees shall have quiet possession of said land, free from all encumbrances; that they have done no act to encumber the same and that they will execute such further assurances as may be requisite.

To have and to hold unto the parties of the second part, their heirs and assigns, forever, in fee simple, together with all appurtenances thereunto belonging and pertaining.

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COLEMAN & COLEMAN
GATE CITY, VIRGINIA

Witness the following signatures and seals:

Gertrude Wood (SEAL)

Stewart P. Wood (SEAL)

Rae C. Wood (SEAL)

Scott H. Wood (SEAL)

Clara Faye Wood (SEAL)

Fred O. Wood (SEAL)

Vaneene Wood (SEAL)

Emory Lee Wood (SEAL)

Vivian Wood (SEAL)

STATE OF VIRGINIA

COUNTY OF SCOTT, towit:

I, Emory L. Smith, a Notary Public of and for the county aforesaid, in the State of Virginia, do hereby certify that GERTRUDE WOOD, widow, STEWART P. WOOD and RAE WOOD, his wife, SCOTT WOOD and CLARA FAYE WOOD, his wife, whose names are signed to the foregoing writing, bearing date on the 2nd day of October, 1958, have acknowledged the same before me in my county and state aforesaid.

Given under my hand this 4th day of October, 1958.

My commission expires on the 30 day of June, 1961.

Emory L. Smith
Notary Public

LAW OFFICES
COLEMAN & COLEMAN
GATE CITY, VIRGINIA

185 155

STATE OF VIRGINIA

CITY OF ARLINGTON, to-wit:

I, Elizabeth C. Summers, a Notary Public of and for the city aforesaid, in the State of Virginia, do hereby certify that EMORY LEE WOOD and VIVIAN WOOD, his wife, whose names are signed to the foregoing writing, bearing date on the 2nd day of October, 1958, have acknowledged the same before me in my county and state aforesaid.

Given under my hand this 14th day of October, 1958.

My commission expires on the 4th day of April, 1962.

Elizabeth C. Summers
Notary Public

~~STATE~~ Territory OF ALASKA

CITY OF FAIRBANKS, to-wit:

I, Mavis E. Winkler, a Notary Public of and for the city aforesaid, in the ~~State~~ Territory of Alaska, do hereby certify that FRED O. WOOD and PAULINE WOOD, his wife, whose names are signed to the foregoing writing, bearing date on the 2nd day of October, 1958, have acknowledged the same before me in my city and state aforesaid.

Given under my hand this 9th day of October, 1958.

My commission expires on the 15th day of August, 1962.

Mavis E. Winkler
Notary Public

LAW OFFICES
COLEMAN & COLEMAN
GATE CITY, VIRGINIA

VIRGINIA, SCOTT COUNTY, TO WIT:
In the Clerk's Office of said county the 25 day Oct 1958, the foregoing writing was presented and with certificate annexed, admitted to record and duly indexed at 11:40 A M.

Teste: [illegible] Clerk

ABSTRACT OF JUDGMENT

Commonwealth of Virginia VA. CODE § 8.01-449

Case No. GV19000925-00

19-305722

SCOTT GENERAL DISTRICT - CIVIL

202 W JACKSON ST STE.203, GATE CITY, VA 24251

DISTRICT COURT NAME AND ADDRESS

MIDLAND FUNDING, LLC v. SMITH, TERESA

FULL NAME OF PLAINTIFF (LAST, FIRST, MIDDLE) — FULL NAME OF DEFENDANT (LAST, FIRST, MIDDLE)

ADDRESS: 6627 W. BROAD STREET SUITE 200, RICHMOND, VA 23230

ADDRESS: 247 PROSPECT CHURCH ROAD, GATE CITY, VA 24251

CITY STATE ZIP — CITY STATE ZIP

DATE OF BIRTH — SSN (LAST FOUR DIGITS ONLY) — DATE OF BIRTH — SSN (LAST FOUR DIGITS ONLY)

FULL NAME OF PLAINTIFF(S) — FULL NAME OF DEFENDANT(S)

ADDRESS — ADDRESS

CITY STATE ZIP — CITY STATE ZIP

DATE OF BIRTH — SSN (LAST FOUR DIGITS ONLY) — DATE OF BIRTH — SSN (LAST FOUR DIGITS ONLY)

This is to certify that a judgment was rendered in this court in favor of:

[X] PLAINTIFF(S) against DEFENDANT(S)

[ ] DEFENDANT(S) against PLAINTIFF(S)

[ ] ..... v. .....

Scott County Virginia Circuit Court
Inst: JD2021000216
BK: JD J51 133-133
RECORDED: 02/08/2021 10:25 AM
MARK A. TAYLOR Clerk of Court
PFLANARY

DATE OF JUDGMENT	2/18/2020
$ 1,928.83	AMOUNT OF JUDGMENT
$	AMOUNT OF JUDGMENT NOT SUBJECT TO ACCRUAL OF INTEREST
HOMESTEAD EXEMPTION WAIVED [ ] YES [ ] NO [ ] CANNOT BE DEMANDED	
$	ALTERNATE VALUE OF SPECIFIC PROPERTY AWARDED
INTEREST RATE(S) AND BEGINNING DATE(S) 6% FROM DOJ	

COSTS	ATTORNEY'S FEES	ATTORNEY
$ 61.00	$	HEINDEL, PETER

OTHER:

I certify the above to be a true abstract of a judgment rendered in this court.

12/11/2020
DATE

[X] CLERK [ ] JUDGE

FORM DC-465 MASTER 7/07

Scott County Virginia Circuit Court
Inst: JD2021000005
BK: JD J50 2400-2403
RECORDED: 01/05/2021 01:40 PM
MARK A. TAYLOR Clerk of Court
BERNIE

NOTICE OF FILING OF FOREIGN JUDGMENT

COMMONWEALTH OF VIRGINIA

SCOTT CIRCUIT COURT

HEIGHTS FINANCE CORPORATION V. TERESA SMITH

JUDGMENT CREDITOR(S)	JUDGMENT DEBTOR(S)
HEIGHTS FINANCE CORP (JOHNSON CITY)	TERESA SMITH
NAME(S)	NAME(S)
366 W MAIN ST, SUITE 5B	247 PROSPECT CHURCH ROAD
POST OFFICE ADDRESS	POST OFFICE ADDRESS
GOODLETTSVILLE, TN 37070	GATE CITY, VA 24251
CITY STATE ZIP	CITY STATE ZIP

OWEN COMPTON
ATTORNEY(S) FOR JUDGMENT CREDITOR(S)

The address(es) of the attorney(s) for the judgment creditor(s) are:

P O BOX 286

GOODLETTSVILLE, TN 37070

The name of the court in which the judgment was entered is:

WASHINGTON COUNTY TENNESSEE
NAME OF FOREIGN COURT

CV-50160
CASE NUMBER

To the Judgment Debtor(s):
You are hereby notified that a copy of the above-described foreign judgment has been filed in the clerk's office of this court on the date shown below. This judgment may be enforced against you by legal action filed through this court.

It may be in your best interest to consult a lawyer regarding this judgment.

JANUARY 5, 2021
DATE OF FILING

MARK A. BO TAYLOR, Clerk
by Bernie Starnes, Deputy Clerk

This mailing of this notice was noted on the Judgment Lien Docket, Book J50 Page 2400 or Instrument Number JD2021000005 on JANUARY 5, 2021, which is also the date of the mailing of this notice.

Mark A Taylor, Clerk
by Bernie Starnes, Deputy Clerk

FORM CC-1410 PDF (MASTER) 11/00 PC
VA. CODE § 8.01-465.3

STATE OF TENNESSEE, COUNTY OF Washington

To Any Lawful Officer To Execute and Return:

CIVIL SUMMONS

Summon Teresa Smith,
247 Prospect Church Road Gate City VA 24251
To appear before the General Sessions Court of Washington, County, TN.
To be held at 108 W, Jackson Blvd Jonesborough TN
on the 30 day of MAY, 2018 at 130 PM., then and there to answer in a civil action brought by Heights Finance Corporation (Johnson City)
for Breach of Contract and Plaintiff prays for judgment in the amount of $1,551.94 plus pre-judgment interest at the contractual rate of 24.000%, equaling $113.52 reasonable attorney's fees as permitted by the attached contract in the amount OF $250.00, for a total of $ 1915.46 plus cost of suit of $149.50 and post-judgment interest of 24.000% .Under $25,000.

Case No. CV-50160

Heights Finance Corporation (Johnson City)
Plaintiff

c/o OWEN COMPTON, THECOOK LAW OFFICE PLLC
, PO Box 286, Goodlettsville, TN, 37070
Address

615-791-1518 Phone

vs.

Teresa Smith-
Defendant

247 Prospect Church Road Gate City VA 24251

POE: Cracker Barrel Old Country Store, Inc. Attn: Payroll 305 Hartman Dr. Lebanon TN 37087

Addresses

JUDGMENT

Judgment for Heights Finance
Against Defendant
For $ 1846.70 plus interest at the rate of 6.25 % and cost of suit, for which execution may issue.

Judgment entered by: ☐ Default ☑ Agreement ☐ Trial
Dismissed: ☐ Without Prejudice ☐ With Prejudice
Costs taxed to: ☐ Plaintiff ☑ Defendant

Defendant(s) _____ in court and admitted to jurisdiction of court. This the 30th day of May, 20 18.

_____, Judge

Division III

POSTED ON DOOR AT Teresa Smith
USUAL PLACE OF ABODE.
SCOTT COUNTY VA. SHERIFF'S OFFICE
BY: J. T. Fletcher
DEPUTY SHERIFF
DATE: 5-16-18

ORDER

the _____, 20
, Judge

I HEREBY CERTIFY THAT THIS IS A TRUE AND EXACT COPY OF THE ORIGINAL DOCUMENT AS IT APPEARS AT THE WASHINGTON COUNTY GENERAL SESSIONS COURT
BRENDA DOWNEY, CLERK
Melissa Hall D.C.
10-23-18

CIVIL SUMMONS
Court of General Sessions

Karen Guinn, Clerk
By Lesly Shoun, Deputy Clerk
Issued 4-25, 20 18.
Set for 5-30-18 at 1:30pm
Reset for _____

Served Upon _____ Defendant
Expires _____
Served _____
Sheriff/Constable/Process Server _____

VIRGINIA
IN THE CLERK'S OFFICE OF
SCOTT COUNTY CIRCUIT COURT
JANUARY 5, 2021 AT 01:36 PM
JUDGMENT/RELEASE #210000011 WAS DOCKETED
UPON CERTIFICATION OF ACKNOWLEDGEMENT
THERETO ANNEXED, ADMITTED TO RECORD.
THE FEE IMPOSED BY SEC. 17.1-275(17)
OF THE VIRGINIA CODE, HAS BEEN PAID.
RCPT: 210000008 BK: _____ PG: _____
TESTE: MARK A. TAYLOR, CLERK
RECORDED BY: EBS

THE COOK LAW OFFICE PLLC/OWEN COMPTON,
BPR#34034 Attorney for Plaintiff

Telephone 615-791-1518

WASHINGTON COUNTY) SS

I, Brenda Downes Clerk of the Sessions Court of Washington County, Tennessee, at Jonesborough Tennessee, do hereby certify that I have compared the foregoing copy of Judgment in the Case of Heights Finance Corporation vs Teresa Smith

with the original record thereof, now remaining in this office, and the same is a correct transcript therefrom, and of the whole of such original record, and that said Court is a Court of Record.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed the seal of said Court this the 30 day of November 2020

Brenda Downes
Clerk of the Sessions Court of Washington County at Jonesborough, Tennessee.

COURT OF GENERAL SESSIONS JONESBOROUGH TENNESSEE WASHINGTON CO.

STATE OF TENNESSEE, WASHINGTON COUNTY ----------SS

I Judge Don Arnold do hereby certify that I am Judge of the Sessions Court of Washington County, Tennessee, and that I am the presiding Judge of said Court and that the above attestation, subscribed by Brenda Downes as Clerk of said Court is sufficient and in due form of law, and that his/her signature thereto is genuine

Witness my hand and official signature, this the 30 day of November 2020

JUDGE of the Sessions Court of Washington County, Tennessee

COURT OF GENERAL SESSIONS JONESBOROUGH TENNESSEE WASHINGTON CO.

STATE OF TENNESSEE, WASHINGTON COUNTY ----------SS

I, Brenda Downes, Clerk of the Sessions Court in and for said County, hereby certify that the above attestation of Honorable _____ Judge of the Sessions Court of Washington County, Tennessee, is his genuine signature, and that he is Judge of said Court and said Certificate is in due form of law.

Given under my hand and seal of office this the 30 day of November 2020

Brenda Downes
Clerk of the Sessions Court of Washington County at Jonesborough, Tennessee

COURT OF GENERAL SESSIONS JONESBOROUGH TENNESSEE WASHINGTON CO.

STATE OF VIRGINIA
SCOTT COUNTY CIRCUIT COURT

HEIGHTS FINANCE CORP

PLAINTIFF

V.

TERESA SMITH DEFENDANT

STATE OF TENNESSEE COUNTY OF WASHINGTON, TO-WIT

Affiant, OWEN COMPTON, after first being duly sworn, states he is the representative for Heights Finance Corporation for the above titled action. Further, name and address of the judgment debtor as follows

Teresa Smith
247 Prospect Church Rd
Gate City, VA 24251

Further, the address of the Judgment Creditor is:

Heights Finance Corporation
366 W Main St, Suite 5B
Hendersonville, TN 37075

OWEN COMPTON, Affiant
PO Box 286
Goodlcstville, TN 37070
(615)791-1518

Subscribed and sworn to before me, a notary public for Tennessee , by OWEN COMPTON as his true act and deed for the purposes herein intended.

KAREN S. HOLDEN
STATE OF TENNESSEE NOTARY PUBLIC
DAVIDSON COUNTY
MY COMMISSION EXPIRES 7-9-2022

NOTARY PUBLIC, TENNESSEE

MY COMMISSION EXPIRES:
7/9/2022

Instrument # CV2014001010
Book 13 Page 1468
Filed: 07/11/2014 At 01:59 PM

Instrument # JD2014002323
Book J42 Page 832
Filed: 07/11/2014 At 04:32 PM

e Dunn Stan DC

VIRGINIA:

IN THE CIRCUIT COURT OF SCOTT COUNTY

SANDRA J. GIBSON — PLAINTIFF

Case No. CL14-133

TERESA SMITH — DEFENDANT

ORDER

On June 11, 2014, came the plaintiff, in person, *pro-se*, in the above styled action, upon an appeal from dismissal of the General District Court of Scott County. The defendant, Teresa Smith, *pro-se,* appeared in person.

Upon evidence presented, the Court determined that the defendant, Teresa Smith, is indebted to the plaintiff, Sandra J. Lane, in the amount of $514.23, and it is ORDERED that judgment is rendered in that amount.

It is, therefore, ADJUDGED and ORDERED, that the plaintiff shall recover $514.23, from the defendant, and this Order shall be entered in the Judgment Lien Docket Book for Scott County.

It is further ORDERED that this matter be stricken from the docket, and the Clerk is directed to send an attested copy of this Order to Sandra J. Gibson, P.O. Box 515, Gate City, VA 24251 and to Teresa Smith, 101 Filter Plant Road, Gate City, VA 24251.

ENTER this Order this the 11th day of July, 2014

JUDGE